

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

PAUL MOUX,

Plaintiff,

-against-

SUMMONSPOLICE OFFICER MARIA LORENZO, Tax No. 951941
and SERGEANT JOSE CAMACHO, Tax No. 914703,

Index No.:

Defendants.

The Basis of Venue is:
Location of IncidentPlaintiff designates New York
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
September 6, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER MARIA LORENZO, Tax No. 951941, Transit District 1 Precinct, 1
Central Park West, New York, NY 10023
SERGEANT JOSE CAMACHO, Tax No. 914703, Transit District 1 Precinct, 1 Central
Park West, New York, NY 10023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- x

PAUL MOUX,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER MARIA LORENZO, Tax No. 951941
and SERGEANT JOSE CAMACHO, Tax No. 914703,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff PAUL MOUX, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On September 30, 2016, at approximately 9:00 a.m., plaintiff lawfully entered the subway station located at Broadway and West 79th Street, New York, New York, when the individually named New York City Police Officer defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, unlawfully seized, and falsely arrested plaintiff. Thereafter, the defendant police officers maliciously prosecuted plaintiff, denied plaintiff his due process rights and denied plaintiff a right to a fair trial by initiating a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court complaint which contained false information about plaintiff. All criminal charges against plaintiff were dismissed and sealed on or about January 5, 2017. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff his due process rights and denied plaintiff the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff PAUL MOUX is a resident of the state of New York.

3. POLICE OFFICER MARIA LORENZO, Tax No. 951941, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MARIA LORENZO, Tax No. 951941, is and was at all times relevant herein, assigned to the Transit District 1 precinct.

5. POLICE OFFICER MARIA LORENZO, Tax No. 951941, is being sued in her individual and official capacity.

6. SERGEANT JOSE CAMACHO, Tax No. 914703, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JOSE CAMACHO, Tax No. 914703, is and was at all times relevant herein, assigned to the Transit District 1 precinct.

8. SERGEANT JOSE CAMACHO, Tax No. 914703, is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On September 30, 2016, at approximately 9:00 a.m., plaintiff lawfully entered the subway station located at Broadway and West 79th Street, New York, New York, when the defendant police officers unlawfully stopped, questioned, frisked, searched, and arrested plaintiff without reasonable suspicion, probable cause, or any legal justification.

14. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

15. By way of background, on September 30, 2016, at approximately 9:00 a.m., plaintiff, who is a construction worker, was on his way to work.

16. Plaintiff lawfully entered the subway station located at West 79th Street and Broadway, New York, New York and lawfully swiped his Metrocard and walked through the turnstile.

17. Notably, at no point in time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on September 30, 2016, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

18. Nevertheless, the individually named defendant police officers unlawfully approached plaintiff, physically seized plaintiff, threw him up against a wall and conducted an unlawful search of plaintiff without reasonable suspicion or probable cause.

19. Specifically, the defendant police officer searched plaintiff all over and inside of his clothing, touching all areas of his body. The defendant police officer reached his hands into plaintiff's pockets and removed all of the contents therein, and searched through the contents of his pockets and the contents of his wallet.

20. Amongst other possessions, plaintiff possessed a legal carpenter's knife provided to him by his job, which was lawfully purchased and for which plaintiff used for his job at a construction site.

21. No reasonable police officer could believe that the carpenter's knife was illegal under any New York State Penal Law and/or statute.

22. At no time did the defendant police officer recover any unlawful weapons, drugs, or illegal contraband of any kind from plaintiff.

23. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

24. Nevertheless, plaintiff was unlawfully handcuffed and unlawfully arrested without probable cause or legal justification.

25. Thereafter, plaintiff was transported to the Transit District 1 precinct, whereat the defendant police officers unlawfully searched plaintiff again, unlawfully fingerprinted and photographed him and detained him in a dirty holding cell for several hours.

26. Thereafter, on September 30, 2016, plaintiff was transported to Manhattan Central Booking and placed into a holding cell.

27. The defendant police officers falsely communicated to the New York District Attorney's Office that plaintiff had committed a crime.

28. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, that plaintiff was in possession of a switchblade knife, defendants maliciously initiated a prosecution against plaintiff without probable cause on September 30, 2016, when plaintiff was arraigned in New York Criminal Court and falsely charged with Criminal Possession of a Weapon in the Fourth Degree (PL 265.01(1)).

29. Specifically, the defendant police officers falsely stated to the defendant police officers that plaintiff was in possession of an illegal gravity knife when in fact, the defendant police officers knew that the knife was a legal carpenter's knife.

30. Notably, arresting plaintiff for possessing a knife in violation of New York Penal Law Section 265.01 is unconstitutional and a violation of plaintiff's Second Amendment Right under the United States Constitution.

31. New York State Penal Law Section 265.01 states that "[a] person is guilty of criminal possession of a weapon in the fourth degree when: (1) he or she possesses any firearm, electronic stun gun, gravity knife, switchblade knife, pilum ballistic knife, metal knuckle knife, cane sword, bill, blackjack, bludgeon, plastic knuckles, metal knuckles...."

32. New York Penal Law Section 265.01 violates plaintiff's right to keep and bear arms under the Second Amendment to the United States Constitution because it completely prohibits law-abiding persons from possessing arms. It is clear from the decision by the United States Supreme Court in District of Columbia v. Heller, 554 U.S. 570 (2008) that the Second Amendment protects an individuals' right to keep and bear knives and that a statute cannot completely prohibit or unduly burden the rights of law-abiding persons to bear arms.

33. Notwithstanding the clear holding of the Supreme Court in Heller, the NYPD has continued to arrest, summons, charge, and prosecute individuals such as plaintiff for violating Penal Law Section 265.01.

34. On September 30, 2016, after approximately 16 hours in custody, plaintiff was arraigned in Manhattan Criminal Court and was released on his own recognizance.

35. Thereafter, plaintiff had to appear in Court on 3 occasions before all charges were dismissed on January 5, 2017.

36. As a result of the unlawful arrest, plaintiff was force to several days of work and lost wages in the amount of approximately \$500.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of fair trial.

38. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

62. Plaintiff repeats and realleges paragraphs 1 through 61 as if fully set forth herein.

63. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

64. Defendants commenced and continued a criminal proceeding against plaintiff.

65. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

66. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

67. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

71. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 70 with the same force and effect as if fully set forth herein.

72. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

73. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

74. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

75. In withholding/creating false evidence against plaintiff Paul Moux and in providing/withholding information with respect thereto, in particular, that Mustafa Muhammad was in possession of an illegal switchblade knife, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

76. As a result of the foregoing, plaintiff Paul Moux, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.

83. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

87. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Paul Moux demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 6, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER MARIA LORENZO, Tax No. 951941, Transit District 1 Precinct, 1 Central Park West, New York, NY 10023
SERGEANT JOSE CAMACHO, Tax No. 914703, Transit District 1 Precinct, 1 Central Park West, New York, NY 10023

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 6, 2019

/s/
STUART E. JACOBS